

United Nations Human Rights Council

Agenda 2: Assessing the human rights implications of the mass deportation of illegal immigrants under the Trump Administration

Authors:

Signatories:

Preamble

The United Nations Human Rights Council,

Recalling the Universal Declaration of Human Rights (UDHR), in particular Articles 3, 5, 6, 7, 8, 9, 10, 13, and 14, which protect against arbitrary arrest, inhumane treatment, ensure freedom of movement, and uphold the right to seek asylum, be recognised as a person before the law, equal protection under the law, legal remedy, fair and public trial,

Reaffirming the 1951 Refugee Convention and its 1967 Protocol, especially the principle of non-refoulement, as well as the International Covenant on Civil and Political Rights (ICCPR), the International Convention on the Protection of the Rights of all Migrant Workers and their Families (CMW), the International Convention of the Rights of the Child (CRC)

Acknowledging the sovereignty of states to regulate immigration, while emphasizing that this power must be exercised in accordance with international human rights obligations,

Alarmed by reports of mass deportations conducted by the United States during the Trump Administration (2025-present), which included family separations, overcrowded detention centers and summary removal of migrants without proper legal review,

Deeply disturbed by the treatment of undocumented immigrants as criminal offenders without clear legislative distinction, often resulting in incarceration, detention in poor conditions, and removal without judicial oversight,

Recognizing the documented human rights abuses in U.S. Immigration and Customs Enforcement (ICE) detention centers, including poor hygiene, lack of medical care, and inadequate facilities for children, pregnant women and families,

Emphasizing the need to protect the rights of all migrants, regardless of legal status, and the responsibility of States to ensure compliance with human rights treaties even in the context of migration enforcement,

Noting with concern the 2025 dispute between U.S. immigration authorities and Harvard University, in which international students faced threats of visa revocation, surveillance, or deportation following alleged misinterpretation of their lawful presence, highlighting the

precarity of legal migrants even within elite academic institutions,

Operative Clauses

1. *Condemns* all mass deportation practices that fail to meet international standards and that violate international human rights law, particularly when they involve:

- a. Arbitrary detention and removal without legal recourse,
- b. Forced family separations,
- c. Deprivation of access to legal counsel or asylum procedures,
- d. Lack of due process rights given to undocumented immigrants;

2. *Calls* upon all Member States, including the United States, to review and align deportation procedures with international legal standards, especially obligations under the Refugee Convention, Convention on the Rights of the Child (CRC), and International Covenant on Civil and Political Rights (ICCPR);

3. *Recommends* that the United States:

- a. Clarify legislatively whether unlawful entry and overstay are to be treated as civil or criminal offenses, ensuring transparency and consistency in enforcement,
- b. Guarantee due process rights to all non-citizens, including access to legal counsel, translators, and the right to appeal deportation orders in an independent judicial setting,
- c. Improve detention conditions, by increasing the capacity of facilities to avoid overcrowding, and ensuring regular health inspections, access to sanitation, nutritious food, and appropriate accommodations for minors,
- d. Prohibit the separation of migrant families, except in cases involving demonstrable danger to the child, and enact legislation that prioritizes the unity and well-being of families during immigration proceedings;

4. *Requests* that the OHCHR launch a fact-finding mission to investigate the human rights consequences of deportation, detention, and separation practices from 2025 to present and provide recommendations for future safeguarding of migrant rights;

5. *Calls* upon the U.S. Congress and Department of Homeland Security to create a mechanism for:

- a. Reviewing past cases of wrongful deportation and family separation,
- b. Facilitating the reunification of affected families, and
- c. Offering a legal pathway to return or compensation where appropriate;

6. *Encourages* the establishment of a UN Special Rapporteur on the Human Rights of Migrants in the Western Hemisphere, with a specific mandate to assess detention and deportation policies in the United States and other regional actors;

7. *Suggests* that the Human Rights Council convene a high-level panel to develop a global framework on Humane Deportation Standards, to include:

- a. Legal safeguards during deportation,
- b. Minimum health and hygiene standards in detention centers,
- c. Clear guidelines on family unity during removal procedures;

8. *Reminds* all member states of their obligation to uphold the principles of non-refoulement, non-discrimination, and dignity for all persons regardless of immigration status;

9. *Requests* the High Commissioner for Human Rights to prepare a comprehensive Global Report on the Human Rights of Migrants in Detention to be presented at the next Session of the Human Rights Council;

11. *Expresses* deep concern over the 2025 actions of the United States Department of Homeland Security regarding international students attending at University of Harvard and their lack of privacy, lack of freedom of speech and now the removal of their F1/J1 visas and recommends the United States of America to:

- a. Ensure transparency and accountability in the visa enforcement process, especially regarding student and academic visas,
- b. Strengthen protections for international students and scholars to prevent politically motivated enforcement actions,
- c. Provide clear legal guidelines for universities and educational institutions hosting foreign nationals,
- d. Establish an oversight mechanism to prevent the use of immigration law as a tool of intimidation against lawful non-citizens.

12. Strongly recommends that the United States of America sign and ratify the International Convention on the Protection of the Rights of all Migrant Workers and their Families (CMW) at their earliest convenience so that there is a clearly established international guideline for all future treatment and deportation practices.

